# Sano Trailers and Jackapp — Customer Information Contract

**Version 1.0 · 2026-10-11**

This is a written operator contract for the customer information handled in Sano's rental system, under section 21 of the Protection of Personal Information Act, 2013 (POPIA). It becomes effective when both parties have signed. Confirm the party details on the signing page before signing.

## 1. The parties and their roles

**Sano Trailers**, identified by its full legal name on the signing page, is the responsible party. Sano decides why customer information is collected and how it is used.

**Donovan Jackson trading as Jackapp**, identified on the signing page, is the operator. Jackapp provides, hosts, maintains and supports the rental system on Sano's behalf. Jackapp is a sole proprietorship; the operator's contractual obligations are Donovan Jackson's personally, not those of a separate company.

## 2. What this contract covers

Jackapp may process customer names, contact and address details, customer-supplied identity and towing-vehicle details, alternative-contact details, and rental, booking, sales, repair, invoice, payment and related communication records. Processing includes storing, retrieving, updating, transmitting, backing up and supporting those records as needed to provide the system.

The people concerned include Sano's customers, customer representatives and alternative contacts. This contract applies while Jackapp provides the service and for as long as Jackapp or its service providers retain information on Sano's behalf.

## 3. Sano's responsibilities

Sano must collect and use information lawfully, give the required customer privacy information, control staff access, keep information reasonably accurate, determine lawful retention periods and respond to customer privacy requests. Sano must provide lawful documented instructions to Jackapp. Outsourcing the system does not transfer Sano's responsibilities under POPIA.

## 4. Jackapp's instructions and confidentiality

Jackapp must process information only with Sano's knowledge or authorisation, for providing, maintaining, supporting, securing and recovering the system. Support and development access must be limited to what is necessary for those purposes. Jackapp must keep the information confidential and restrict access to authorised people who need it and are bound by confidentiality obligations.

Jackapp must not sell the information or use it for its own marketing or unrelated purposes. Disclosure is permitted only on Sano's lawful instructions, where required by law, or in the proper performance of the authorised service.

## 5. Security measures

Jackapp must establish and maintain appropriate, reasonable technical and organisational safeguards as required by section 19 of POPIA. Jackapp must identify reasonably foreseeable risks, implement appropriate safeguards against those risks, regularly verify that safeguards are effective and update them as risks or deficiencies change.

The safeguards include password-protected accounts, access restrictions, confidential handling of system credentials, secure connections, appropriate hosting and database protections, recovery backups where

needed, and investigation and correction of identified security weaknesses. Sano must also protect its staff accounts and devices and promptly report suspected misuse.

These are obligations to take appropriate, reasonable measures, not a guarantee that a security incident can never occur.

## 6. Other service providers and overseas processing

Sano authorises the use of hosting, database, communication and backup providers reasonably needed for the service. Jackapp must require suitable confidentiality and security obligations for providers processing this information and remain responsible to Sano for the processing it delegates under this contract.

The current system uses Render application hosting in the United States and a Turso database in Ireland. Jackapp must ensure that any overseas processing meets the applicable requirements of section 72 of POPIA. Authorisation in this contract does not, by itself, establish that those legal requirements are satisfied. Jackapp must inform Sano before a material change in the overseas hosting arrangements.

## 7. Security incidents

Jackapp must notify Sano **immediately** if there are reasonable grounds to believe customer personal information has been accessed or acquired by an unauthorised person. Jackapp must provide the information reasonably available, help contain and investigate the incident, and cooperate with Sano's response.

Sano is responsible for the notifications to the Information Regulator and affected people required by section 22 of POPIA, with reasonable assistance from Jackapp.

## 8. Customer requests and information ownership

Sano retains control of its customer information; Jackapp does not claim ownership. Jackapp must reasonably assist Sano with lawful requests for access, correction, export, objection or deletion and with security enquiries about the service. Sano remains responsible for deciding how to respond to a request and whether information must be retained by law.

## 9. Ending the service

When the service ends, Jackapp must reasonably assist with exporting or returning Sano's information and carry out lawful written deletion instructions, subject to legal retention requirements and necessary legal holds. Any information retained in recovery backups must remain confidential, access-restricted and subject to the applicable lawful retention arrangements; it must not be reused for unrelated purposes.

## 10. Relationship to the service agreement

This contract covers customer-information processing and security. Fees, payment and other commercial service terms remain governed by any applicable service agreement. This contract does not introduce a new indemnity, penalty or guarantee of incident-free security, and does not displace any valid existing liability limit. Applicable law continues to apply.

Changes to this contract must be agreed in writing by both parties. Signing this contract is not a certificate of full POPIA compliance and does not register Sano's Information Officer.

## 11. Electronic signing and copies

The parties agree that they may sign electronically. Each authorised representative must identify themselves, confirm their authority to bind the party, review the complete contract and deliberately indicate agreement.

A representative may complete the electronic-signature name field and tick the signing declaration in a compatible PDF editor, or use an appropriate electronic-signature service. A typed name alone, without an

intention to sign and evidence linking it to the authorised signer, is not proof of a valid signature.

Both parties must sign the same version of this contract and exchange and keep the completed copy. Signing takes effect on the date the second party signs. Changes to the contract terms or party details after signing require fresh agreement and signatures. The download does not verify identity, provide a cryptographic signature or record acceptance in the rental app.

# Electronic signing — both parties

Contract version 1.0. Confirm the legal party details, complete the fields, and deliberately sign below. Retain any existing signature. Use Adobe Acrobat Reader or another compatible PDF editor; a browser preview may not support form saving.

## Sano Trailers

Full legal name of the party

Registration number / legal form

2018/521057/07

Authorised representative - full name

Position / signing capacity

Date signed (DD-MM-YYYY)

Electronic signature - type full name

☐ I have read and agree to this contract.
I am authorised to bind this party.
I intend the name above to be my signature.

## Jackapp

Full legal name of the party

Donovan Jackson t/a Jackapp

Registration number / legal form

Sole proprietor

Authorised representative - full name

Donovan Jackson

Position / signing capacity

Sole proprietor / operator

Date signed (DD-MM-YYYY)

11-10-2026

Electronic signature - type full name

Donovan Jackson

☑ I have read and agree to this contract.
I am authorised to bind this party.
I intend the name above to be my signature.